Chapter 5.—ALIEN OWNERSHIP OF LAND

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§ 71. Lands in Territories.

No alien or person who is not a citizen of the United States, or who has not declared his intention to become a citizen of the United States in the manner provided by law shall acquire title to or own any land in any of the Territories of the United States except as hereinafter provided. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty, shall continue to exist so long as such treaties are in force, and no longer. (Mar. 3, 1887, ch. 340, § 1, 24 Stat. 476; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 72. Same; previously acquired lands; bona fide resident aliens; mining or incorporated village lands.

Sections 71–77 of this title shall not apply to land owned in any of the Territories of the United States by aliens, which was acquired on or before March 3, 1887, so long as it is held by the then owners, their heirs or legal representatives, nor to any alien who shall become a bona fide resident of the United States, and any alien who shall become a bona fide resident of the United States, or shall have declared his intention to become a citizen of the United States in the manner provided by law, shall have the right to acquire and hold lands in either of the Territories of the United States upon the same terms as citizens of the United States. If any such resident alien shall cease to be a bona fide resident of the United States then such alien shall have ten years from the time he ceases to be such bona fide resident in which to alienate such lands. Sections 71–77 of this title shall not be construed to prevent any persons not citizens of the United States from acquiring or holding lots or parcels of lands in any incorporated or platted city, town, or village, or in any mine or mining claim, in any of the Territories of the United States. (Mar. 3, 1887, ch. 340, § 2, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 73. Same; acquisition by inheritance, in collection of debts, etc.

Sections 71–77 of this title shall not prevent aliens from acquiring lands or any interests therein by inheritance or in the ordinary course of justice in the collection of debts, nor from acquiring liens on real estate or any interest therein, nor from lending money and securing the same upon real estate or any interest therein; nor from enforcing any such lien, nor from acquiring and holding title to such real estate, or any interest therein, upon which a lien may have heretofore or may hereafter be fixed, or upon which a loan of money may have been heretofore or hereafter may be made and secured. All lands so acquired shall be sold within ten years after title shall be perfected in him under said sale or the same shall ascheat to the United States and be forfeited as provided in sections 74–77 of this title. (Mar. 3, 1887, ch. 340, § 3, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 74. Same; conveyance by aliens before escheat proceedings.

Any alien who shall hold lands in any of the Territories of the United States in contravention of the provisions of sections 71–77 of this title may nevertheless convey his title thereto at any time before the institution of escheat proceedings as hereinafter provided. If any such conveyance shall be made by such alien, either to an alien or to a citizen of the United States, in trust and for the purpose and with the intention of evading the provisions of said sections, such conveyance shall be null and void, and any such lands so conveyed shall be forfeited and escheat to the United States. (Mar. 3, 1887, ch. 340, § 4, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 75. Same; proceedings for escheat of improperly held lands.

It shall be the duty of the Attorney General of the United States, when he shall be informed or have reason to believe that land in any of the Territories of the United States are being held contrary to the provisions of sections 71–77 of this title, to institute or cause to be instituted suit in behalf of the United States in the district court of the Territory in the district where such land or a part thereof may be situated, praying for the escheat of the same on behalf of the United States to the United States. Before any such suit is instituted the Attorney General shall give or cause to be given ninety days' notice by registered letter of his intention to sue, or by personal notice directed to or delivered to the owner of said land, or the person who last rendered the same for taxation, or his agent, and to all other persons having an interest in such lands of which he may have actual or constructive notice. In the event personal notice cannot be obtained in some one of the modes above provided, then said notice shall be given by publication in some newspaper published in the county where the land is situate, and if no newspaper is published in said county then the said notice shall be published in some newspaper nearest said county. (Mar. 3, 1887, ch. 340, § 5; Mar. 2, 1897, ch. 363, 29 Stat. 619.)

§ 76. Same; condemnation and sale of lands in escheat proceedings.

If it shall be determined upon the trial of any such escheat proceedings that the lands are held

contrary to the provisions of sections 71–77 of this title, the court trying said cause shall render judgment condemning such lands and shall order the same to be sold as under execution; and the proceeds of such sale, after deducting costs of such suit, shall be paid to the clerk of such court so rendering judgment, and said fund shall remain in the hands of such clerk for one year from the date of such payment, subject to the order of the alien owner of such lands, or his heirs or legal representatives; and if not claimed within the period of one year, such clerk shall pay the same into the treasury of the Territory in which the lands may be situated, for the benefit of the available school fund of said Territory. The defendant in any such escheat proceedings may, at any time before final judgment, suggest and show to the court that he has conformed with the law, either becoming a bena fide resident of the United States, or by declaring his intention of becoming a citizen of the United States, or by the doing or happening of any other act which, under the provisions of sections 71–77 of this title, would entitle him to hold or own real estate, which being admitted or proved, such suit shall be dismissed on payment of costs and a reasonable attorney fee to be fixed by the court. (Mar. 3, 1887, ch. 340, § 6; Mar. 2, 1897, ch. 363, 29 Stat. 619.)

§ 77. Same; public lands.

Sections 71–77 of this title shall not in any manner be construed to authorize aliens to acquire title from the United States to any of the public lands of the United States or to in any manner affect or change the laws regulating the disposal of the public lands of the United States. (Mar. 3, 1887, ch. 340, § 7; Mar. 2, 1897, ch. 363, § 7, 29 Stat. 619; Feb. 23, 1905, ch. 733, 33 Stat. 733.)

§ 78. Same; application to District of Columbia.

Aliens shall have the same rights and privileges concerning the acquisition, holding, owning, and disposition of real estate in the District of Columbia as are conferred upon aliens in respect of real estate in the Territories of the United States by sections 71–77 of this title. (Feb. 23, 1905, ch. 733, 33 Stat. 733.)

§§ 79–82. Lands in District of Columbia.

Sections related to alien ownership of real estate in the District of Columbia. Sections 79–81 were from act Mar. 3, 1887, ch. 340, §§ 1, 2, 4, respectively, 24 Stat. 476, 477, as specifically excepted from amendment by act Mar 2, 1897, ch. 363, 29 Stat. 618 (for said act Mar. 3, 1887, as amended by the 1897 act, see sections 71–77 of this title); and section 82 was from act Mar. 9, 1888, ch. 30, 25 Stat. 45.

These sections were incorporated in sections 396–398 of the District of Columbia Code enacted by act Mar. 3, 1901, ch. 854, 31 Stat. 1252, and amended by act June 30, 1902, ch. 1329, 32 Stat. 539; but they were omitted from the 1929 D. C. Code as having been superseded by section 78 of this title.

§ 83. Public lands in Hawaii.

No person, including individual, partnership, corporation, and association, who is an alien, shall be entitled to receive any certificate of occupation, right of purchase lease, cash freehold agreement, or special homestead agreement in public lands in Hawaii, unless he has declared his intention to become a citizen of the United States as provided by law. No person who has so declared his intention, and taken and held under any such certificate, lease, or agreement, shall continue to hold, or become entitled to a homestead lease or patent to the land, unless he becomes a citizen within five years after so taking. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 304, 42 Stat. 117.)

§ 84. Same; conveyance or other transfer to alien.

No public land in Hawaii for which any certificate of occupation, right of purchase lease, or cash freehold or special homestead agreement is issued or any part thereof, or interest therein or control thereof, shall, without the written consent of the Commissioner of Public Lands of the Territory of Hawaii, and governor, thereafter, whether before or after a homestead lease or patent has been issued thereon, be or be contracted to be in any way, directly or indirectly, by process of law or otherwise, conveyed, mortgaged, leased, or otherwise, transferred to, or acquired or held by, or for the benefit of any alien. The prohibitions of this section shall not apply to transfers or acquisitions by inheritance or between tenants in common. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 304, 42 Stat. 117.)

§ 85. Same; preference right to purchase land to persons declaring intention to become citizens.

The Commissioner of Public Lands of the Territory of Hawaii, with the approval of the governor, may give to any person who has legally declared his intention to become a citizen of the United States, and thereafter becomes such, and who has, or whose predecessors in interest have improved any parcel of public lands and resided thereon continuously for the ten years next preceding the application to purchase, a preference right to purchase so much of such parcels and such adjoining land as may reasonably be required for a home, at a fair price to be determined by three disinterested citizens to be appointed by the governor. In the determination of such purchase price, the commissioner may, if he deems it just and reasonable, disregard the value of the improvements on such parcel and adjoining land. If such parcel of public lands is reserved for public purposes, either for the use of the United States or the Territory of Hawaii, the commissioner may, with the approval of the governor, grant to such person a preference right to purchase public lands which are of similar character, value, and area, and which are situated in the same land district. The privilege granted by this section shall not extend to any original lessee or to an assignee of an entire lease of public lands. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 306, 42 Stat. 118.)

CROSS REFERENCE

Preference right to purchase public lands in Hawaii given United States citizens or persons legally declaring intention to become United States citizens, see Session Laws of Hawaii 1935, pp. 31, 32, §§ 8, 9.

§ 86. Same; sale of agricultural land to persons declaring intention to become citizens.

The Commissioner of Public Lands of the Territory of Hawaii shall, with the approval of the board of public lands, sell to any person who has legally declared his intention to become a citizen of the United States, for residence purposes lots and tracts of agricultural lands, not exceeding three acres in area. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 308, 42 Stat. 118.)

Chapter 6.—IMMIGRATION

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